

26STCP01797 26STCP01797

County: los-angeles

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Case Number: 26STCP01797 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Shelly

G. Wolfsdorf 's Petition to Confirm Arbitration Award is granted.

Petitioner is

to file a proposed judgment in accordance with this order within 20 days.

Analysis:

Petitioner Shelly

G. Wolfsdorf ("Petitioner") filed the instant

Petition to Confirm Arbitration Award against Respondents Dalmore Group LLC ("Respondent Dalmore") and Finalis Securities LLC ("Respondent Finalis") on May 8, 2026. The

Petition seeks to confirm the arbitration award issued on January 20, 2026, in favor of Petitioner, requiring expungement

of all references to certain customer dispute information maintained by the Financial Industry Regulatory Authority ("FINRA") in the Central Registration Depository

("CRD"). (Pet., Attachment 8(c), pp. 3-4.) FINRA waived its

participation in the confirmation proceedings. (Id., Attachment 5.)

Legal Standard

"Any party to an arbitration in which an award has been made

may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all

parties to the arbitration and may name as respondents any other persons bound

by the arbitration award." (Code Civ.

Proc., § 1285.) "If a petition or response under this chapter is duly

served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

A response to a

Petition to Confirm Arbitration Award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent, or within ten days of service of the Petition to Confirm, whichever is sooner. (Code Civ. Proc., §§ 1288.2, 1290.6; Valencia v. Mendoza (2024)103 Cal. App. 5th 427, 445.)

Discussion

Filing Requirements of a Petition to Confirm Arbitration Award (CCP § 1285.4)

Code

of Civil Procedure section 1285.4 states: “A petition under this chapter shall:

(a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

(b) Set

forth the names of the arbitrators.

(c) Set forth

or have attached a copy of the award and the written opinion of the arbitrators, if any.”

(Code Civ. Proc., § 1285.4 (emphasis added).) The

Petition sets forth the substance of the arbitration agreement and attaches a copy of the arbitration award with the names of the arbitrators. (Pet., ¶¶4-6 and Attachment 8(c).) This satisfies Code of Civil Procedure section 1285.4, subdivisions (a)-(c).

Service of the Petition and Notice of Hearing (CCP §

1290.4)

Code of Civil Procedure

section 1290.4 states in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

(Code Civ. Proc., § 1290.4.) The arbitration agreement does not provide for the manner of service. (Pet., Exh. 2.) On June 17, 2026, Petitioner filed Notices and Acknowledgement of Receipt with respect to service of the Petition and Notice of Hearing on both Respondents. (Notices and Acknowledgement of Receipt, filed 06/17/26.) The Notices and Acknowledgement of Receipt also include a Notice of Non-Opposition to the Petition. (Ibid.) Respondents also informed Petitioner that they would not appear at the hearing on the instant Petition. (Decl. of Non-Appearance, filed 09/10/26.) Based on Respondents' acknowledgment of receipt of the papers and submission to the Court's jurisdiction, the Court finds that compliance with Code of Civil Procedure section 1290.4 is satisfied.

Service of the Arbitration

Award (CCP § 1283.6)

Code of Civil Procedure section 1283.6

provides that: “The neutral arbitrator

shall serve a signed copy of

the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” (Emphasis added.)

This requirement may be satisfied by service by the arbitrator, or upon proper

service of the award with the Petition. (See *Murry v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The

Petition demonstrates that the arbitration award was served on the parties on February 11, 2026. (Pet., Attachment 8(c), p. 6.) Therefore, the Court finds the requirements of Code of Civil Procedure section 1283.6 have been met.

Timing of Service of Petition (CCP §§ 1288, 1288.4)

A party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc., §§ 1288, 1288.4.) The Petition was timely filed approximately three months after the award was issued.

Merits of the Petition to Confirm Arbitration Award

The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Substantively, Petitioner has demonstrated that on January 20, 2026, the arbitrators issued an award in their favor and against Respondents requiring expungement of all references to certain customer dispute information as to Petitioner maintained by FINRA in Petitioner's Central Registration Depository ("CRD") record. (Pet., Attachment 8(c), pp. 4-5.)

Conclusion

Therefore, Petitioner Shelly G. Wolfsdorf 's Petition to Confirm Arbitration Award is granted.

Petitioner is to file a proposed judgment in accordance with this order within 20 days.

Moving party is to give notice.